

REPORT ON AI SURVEILLANCE AND FACIAL RECOGNITION: BALANCING SECURITY WITH CIVIL LIBERTIES

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DATE: 16TH JAN, 2026

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ABSTRACT

This report looks at the problem between using artificial intelligence to watch people for public safety and making sure people's rights are protected. It talks about some issues like when people get scared to do things because they know they are being watched all the time, the fact that facial recognition technology is not always right and can be unfair to some people and the fact that people do not know what is happening with the information that is being collected about them, like when the police arrest the wrong person or companies take peoples information without asking.

Analysing global regulations like the EU AI Act, the report advocates for an ethical AI framework built on principles including fairness, transparency, accountability, and human oversight to ensure these technologies serve democratic governance and protect fundamental rights.

INTRODUCTION

Artificial intelligence is improving day by day, and this has transformed modern surveillance. Governments and companies can now monitor people, identify them, and track their activities from anywhere and more easily than ever before. Technologies such as facial recognition, large personal databases, and constant monitoring in public spaces raise serious questions about privacy, freedom, and safety. Society must decide how much personal freedom people are willing to give up in exchange for security, and how deeply technology should be involved in daily life.

As surveillance that uses artificial intelligence becomes more advanced, concerns grow about its impact on privacy and freedom of expression. When people know they are being watched, they often change their behavior like they limit the things that they do and say, which can limit free speech and the right to assemble. Facial recognition systems may be helpful in some cases, but they also pose risks. Many people do not know when their biometric data is collected, stored, or used. Even small errors in these systems can lead to misidentification, causing serious harm to innocent individuals and their biometric data.

To address these risks, regulations and guidelines have been introduced. The European Union's General Data Protection Regulation and the EU AI Act aim to control the use of personal data and restrict harmful surveillance practices. Organizations like UNESCO and the OECD also promote ethical AI principles. Ethical AI surveillance must be fair, transparent, accountable, and respectful of privacy, ensuring that technology protects human rights rather than undermines them.

THEMATIC REVIEW: AI Surveillance, Facial Recognition and Civil Liberties

3.1 Mass Surveillance and Human Rights Concerns:

Mass Artificial Intelligence powered surveillance is a problem all over the world. This is because it hurts some important rights that people have like the right to privacy. The right to privacy is something that is protected by agreements between countries.

Artificial Intelligence is different from systems because it can look at a lot of personal information and biometric data very quickly even in real time. This means that governments can watch over groups of people all the time.

For example, China uses recognition a lot and it is connected to something called social credit systems. This shows how surveillance can be used to control what people do by giving them rewards or punishments.

When people are being watched all the time they get scared to say what they think to protest against things they do not like or to spend time with people. Artificial Intelligence powered surveillance is something that affects peoples lives in a way and it is related to Artificial Intelligence. Studies following Edward Snowden's revelations also showed that surveillance reduces free expression. Ultimately, mass surveillance treats everyone as a suspect and weakens democratic participation and personal freedom.

3.2 Real – Time Facial Recognition in Public Spaces

Facial recognition in places is a big problem. It makes people worry about who's watching them and if they are doing it with their permission. The police in the UK have tried using recognition and it has not worked very well. They have made a lot of mistakes, which means they have wrongly accused people who have done nothing. This is like being watched all the time when you're out in public and that is not fair because people do not know they are being watched.

Facial recognition systems also have a time telling people apart if they are not white. They have a lot of trouble with people and African American people, especially women who are not white. For example, something bad happened to Robert Williams in Detroit in 2020. He was arrested for something he did not do. That is a big problem with facial recognition. Facial recognition is used in spaces and that is why people are worried, about it. Instead of improving safety, this technology often worsens discrimination and enables political suppression by tracking protests and discouraging free expression.

3.3 Consent, Transparency, and Institutional Misuse

Surveillance systems are taking pictures of peoples faces without them even knowing it. For example Clearview AI is a company that took billions of pictures from Facebook and other websites. Then they sold these pictures to the police. They care more about making money than about keeping peoples information private. Surveillance systems, like Clearview AI need to be controlled so they do not misuse peoples information.

The government is also watching people in secret so people do not know they are being watched. This is a problem because when the government does things in secret they can pick on people who disagree with them like critics and activists. History shows that when the government is not transparent they can target people who speak out against them like critics, activists and people who disagree with the government. This creates a serious power imbalance between institutions and individuals, undermining accountability, privacy, and democratic participation.

3.4 Balancing Security with Civil Liberties

AI surveillance can be helpful when it comes to dealing with crime and terrorism. We need to make sure we have strong rules in place to protect the rights of individual people. Some cities, such as San Francisco and Boston have said no to the government using recognition because they are worried about discrimination and civil liberties. To get it right the police should only use AI surveillance for serious crimes, and they need to have a good reason for doing so. We need to have people watching over the police to make sure they are using AI surveillance correctly. The systems they use should be checked regularly to make sure they are fair and not biased. We can also put in

place things like checking how AI surveillance affects people and setting time limits on how we use it to prevent it from being misused.

AI surveillance is a tool and we need to use it carefully so we can stop serious crime and terrorism and at the same time protect the rights of individual people like the people, in San Francisco and Boston who do not want the government to use facial recognition. The EU's AI Act also offers a model by restricting high-risk applications while allowing carefully regulated use.

PROPOSED ETHICAL FRAMEWORK FOR AI SURVEILLANCE

There are seven ideas that AI surveillance system should follow:

- **Fairness:** Fairness is very important. We need to keep checking our systems all the time to make sure they are fair to all people. This means we have to check for bias against groups of people and if we find any bias, we have to fix it.
- **Transparency:** We need to be open about what we are doing when it comes to surveillance. This means that we have to tell people what we are capable of, why we are doing it, where it is, where it is happening and who is watching over everything. When we make decisions, we have to be able to explain how we came to those decisions. This way, everyone can know what is going on.
- **Human Oversight:** We need people to double check things before anything bad or big happens because of what artificial intelligence finds. We should not let computers make decisions on their own when it comes to things that affect people's rights. Humans must be responsible for making the decisions. So, we need to make sure that a person reviews everything before anything is done. Human Oversight is important to make sure humans are in charge not just the artificial intelligence.
- **Accountability:** When we talk about accountability, we need to make sure that everyone involved with the system is responsible for their actions. This means that the people who develop the system, the people who put it there for the use and the people who actually use it all have to be held accountable. We have to make sure that if something goes wrong, people can get help and fix the problem. If someone is wrongly identified or arrested because of a system error, they should be able to appeal and get compensated for what happened to them. Accountability is important because it makes sure that the system is fair and the people are treated fairly.
- **Sustainability:** Sustainability is about being responsible to the environment when we design, put in place and run the system. Big surveillance network needs a lot of computer power to use a lot of energy and needs space to store data, which is bad for environment. The people who makes this system has to think about how to use energy to make the systems work better so they don't need as much computer power and decide if the good things about surveillance are worth the harm it does to the environment.

DISCUSSION / PERSONAL REFLECTION

Through this report, I have learnt a lot about AI Surveillance. At first, I thought AI Surveillance and facial recognition seemed like a way to keep people safe. Then after I did some research on my own, I found out that AI Surveillance and facial recognition has some big problems. For example, there was this guy named Robert Williams who was arrested due to a system error. There are also studies that shows that AI Surveillance and facial recognition are biased against certain racial groups. This is a big deal because AI Surveillance and facial recognition can really hurt people who are already treated unfairly, like marginalized communities and AI surveillance and facial recognition can make their lives even harder.

The Clearview AI scandal is a big news. It shows that companies are getting too powerful, and nobody is holding them accountable. When people know that they are being watched, they start to watch what they say and do. They don't want to say something that might get them in trouble. This means that they are not taking part in their life like they used to. The Clearview AI scandal is an example of this problem. It is troubling because it makes people afraid to speak up. The scandal is also bad because it hurts our society.

These lessons show the urgent need of ethical AI. We need strong rules to ensure fairness, transparency, accountability and sustainability. The central question is no longer if we can deploy the surveillance but if we should and what safeguards are necessary to protect human dignity.

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